

Here, this case presents a straightforward cause of action for personal injury based on alleged negligence. Plaintiff contends Costco's employee lurched backward when maneuvering a row of shopping carts and knocked Plaintiff to the ground. Costco contends its employee is certain she was pushing a row of carts into the cart corral when she felt Plaintiff trip over the back of her ankle. Costco also intends to establish that Plaintiff is 75 years old and has used a cane since she was 60 years old 'because she felt like she would fall easily.' (Mem., p. 4:11-12.) The parties suggest Plaintiff intends to call two persons who were with Plaintiff when she fell as percipient witnesses to testify about what they saw.¹

The liability issue is relatively simple. The jury must determine whether they believe Plaintiff's witnesses or Costco's witnesses. Costco's experienced counsel estimates the liability phase will require about three court days. The witnesses for the liability phase are limited to Plaintiff, her two witnesses, and Costco's employees.

In contrast to the relatively simple issue of liability, the parties anticipate the witnesses for the damages phase will include Plaintiff, her two percipient witnesses to the fall, Plaintiff's treating physicians, before and after the fall, and multiple medical expert witnesses. In light of Plaintiff's pre-existing condition and the extensive medical treatment, which Costco will challenge, the damages phase will be lengthy with the testimony of many treating physicians and opinions of dueling experts. Costco estimates the damages phase will require five to ten court days at a minimum, and possibly weeks. Furthermore, if the jury were to hear evidence of Plaintiff's damages before deciding the issue of liability, it might allow its sympathy to influence its liability decision.

In sum, if Plaintiff loses on the liability issue, court time will not be wasted on damages. If Plaintiff wins, it will promote settlement, and afford a more logical presentation of evidence if a second phase is required. Thus, it will simplify the issues for the jury. Bifurcation will expedite the trial, avoid unnecessary costs and delays, and prevent undue prejudice to Costco.² Therefore, the court grants Costco's motion to bifurcate the issues of liability and damages, with the issue of liability to be tried first.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 10, 2026.
(Judge's initials) (Date)

¹ Both parties' memoranda include statements about the cause of the fall without supporting declarations. Plaintiff's liability witnesses are identified as Plaintiff's daughter and her daughter's boyfriend (Jaime decl., ¶ 3) or Plaintiff's granddaughter, Elizabeth Gonzalez, and Ms. Gonzalez's ex-boyfriend, Luis Alanis (Roberts decl., ¶ 3).

² Inasmuch as Costco moves for bifurcation to establish the order of trial, the court fails to see the relevance of Plaintiff's cited cases regarding two juries.

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Tentative Ruling

Re: **Perez v. Aragon**
Superior Court Case No. 25CECG05717

Hearing Date: July 14, 2026 (Dept. 403)

Motion: By Defendant Jose Aragon for Order Deeming Request for Admissions Admitted; Request for Sanctions

Tentative Ruling:

To grant defendant Jose Aragon's motion to deem requests for admissions admitted by plaintiff Ed Perez. The truth of the matters specified in the Request for Admissions, Set One, are to be deemed admitted **unless** plaintiffs serve, **before** the hearing, proposed responses to the requests for admission that are in substantial compliance with Code of Civil Procedure section 2033.220.

To impose monetary sanctions in favor of defendant Jose Aragon and against plaintiff Ed Perez. (Code Civ. Proc., § 2033.280, subd. (c).) Plaintiff is ordered to pay \$460.00 in sanctions to Brenda A. Linder Attorney at Law, within 30 days of the clerk's service of the minute order.

***If oral argument is timely requested, such argument will heard be
on Thursday July 16, 2026 at 3:30 pm.***

Explanation:

Where a party fails to timely respond to a propounding party's request for admissions, objections are waived and the court must grant the propounding party's motion requesting that matters be deemed admitted, unless it finds that the party to whom the requests were directed has served, prior to the hearing on the motion, a proposed response that is substantially in compliance with Code of Civil Procedure section 2033.220. (Code Civ. Proc. § 2033.280; see also *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778 ("*St. Mary*").) "Substantial compliance" means compliance with respect to "every reasonable objective of the statute." (*Id.* at p. 779, internal quotation marks and citations omitted.)

There is relief available for the party who failed to timely respond. The responding party can move the court for relief from waiving objections by (1) serving responses in substantial compliance and (2) demonstrating that the failure to serve responses was the result of mistake, inadvertence or excusable neglect. (Code Civ. Proc., § 2033.280, subd. (a)(1) and (2).) By simply serving substantive responses to the requests for admission prior to the hearing date for this motion the court must deny the motion. (Code Civ. Proc., § 2033.280(c); see also *St. Mary, supra*, 223 Cal.App.4th at 776.)

Request for Admissions, Set One, was served by mail to plaintiff Ed Perez ("Plaintiff") on January 22, 2026. Plaintiff and defendant Jose Aragon ("Defendant") agreed to an

extension, but Plaintiff failed to serve responses. No opposition has been filed demonstrating any excusable reason for Plaintiff's failure to respond to the requests for admission. As such, the court intends to grant the motion unless responses to the requests are served before the hearing on the motion.

Sanctions:

The court must impose a monetary sanction against the party or attorney, or both, whose failure to respond necessitated the motion to deem matters admitted. (Code Civ. Proc., §2033.280(c).)

Defendant seeks \$460 in sanctions for one hour of time spent on the motion billed at \$400 per hour and the \$60 filing fee. Defendant's request for sanctions is granted. Plaintiff Ed Perez is ordered to pay \$460.00 to Brenda A. Linder Attorney at Law, within 30 days of the clerk's mailing of the minute order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 10, 2026.
(Judge's initials) (Date)